



IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 7TH DAY OF AUGUST, 2025

BEFORE

THE HON'BLE MR. JUSTICE HANCHATE SANJEEVKUMAR

MISCELLANEOUS FIRST APPEAL NO. 2482 OF 2019 (RCT)

BETWEEN:

1. SMT GANGAMMA H
W/O LATE PARASHURAMA G H @ RAMANNA
AGED ABOUT 28 YEARS, HOUSEWIFE
R/O #385, 2ND STAGE, RCC LAYOUT
SPS NAGARA, BUDAL ROAD
DAVANAGERE-577006.
2. SMT. BASAMMA GULEDA
W/O LATE HANUMANTHAPPA
AGE 70 YEARS, HOUSEWIFE
#1173, SANGAMESHWARA ONI
WARD NO.4, HUNAGUNDA TALUK
BAGALKOT DISTRICT.

...APPELLANTS

(BY SRI. SHANTHARAJA K.G, ADVOCATE)

AND:

UNION OF INDIA
REPRESENTED BY ITS GENERAL MANAGER
SOUTH WESTERN RAILWAY
HUBLI-580020.

...RESPONDENT

(BY SRI. H. SHANTHI BHUSHAN, DSGI)

THIS MFA IS FILED U/S 23(1) OF RAILWAY CLAIMS
TRIBUNAL ACT AGAINST THE ORDER DATED 18.01.2019

Digitally
signed by
RAMYAD
Location:
HIGH
COURT OF
KARNATAKA



PASSED IN OA II U 091/2016 ON THE FILE OF THE RAILWAY CLAIMS TRIBUNAL, BENGALURU, DISMISSING THE CLAIM PETITION FOR COMPENSATION.

THIS APPEAL, COMING ON FOR HEARING, THIS DAY, JUDGMENT WAS DELIVERED THEREIN AS UNDER:

CORAM: HON'BLE MR. JUSTICE HANCHATE SANJEEVKUMAR

JUDGMENT

The applicants, who are the wife and mother of the deceased, have filed this appeal questioning the order dated 18.01.2019 passed in OA II U 091/2016 by the Railway Claims Tribunal, Bengaluru Bench (hereinafter referred to as 'the Tribunal' for short) thereby, the claim application filed by the applicants was dismissed on the reason that the deceased was not a bonafide passenger and his death was not due to the Railway accident.

2. Heard arguments from both sides and perused the materials placed on record.

3. In order to prove the case, on behalf of appellants, appellant No.1-wife was examined as AW-1 and one Sri Ramesha was examined as AW-2 and Exs.A1 to A-17 were marked. The respondent did not lead oral



evidence, but only submitted DRM's investigation report marked as Ex.R-1.

4. It is the case of the claimants that the claimant No.1 is the wife and claimant No.2 is the mother of the deceased. The deceased died on 17.9.2015 after purchasing the journey ticket while traveling from Bangalore city to Davanagere, and due to heavy rush in the general compartment, the deceased was forced to travel standing or sitting near the doorway of the compartment. During the course of journey, he lost balance and fell down from the moving train, sustained severe injuries and thus the deceased died on the spot.

5. The Tribunal has dismissed the claim application on the reason that though the deceased was not found to be a *bona fide* passenger, but the place of untoward incident is suspicious one. The Tribunal has also assigned the reason that the Loco Pilot has not informed



the nearby Station Master or Police regarding untoward incident.

6. Ex.R1 is the DRM report. The said report is a cyclostyled copy, and the respondent has not filed any rebuttal evidence to disprove the journey ticket found with the deceased. The contention of the applicants is that the journey ticket was recovered from the deceased. Thus the deceased was found to be a *bona fide* passenger. But the suspicion raised by the Tribunal does not have merit on the reason that just because, the Loco Pilot has not informed the nearby Station Master or police is not a ground to dismiss the claim petition. Admittedly, the dead body was found lying near Road-I track at KM No.87/600 at Nittur end at Gubbi Yard as per Exhibit-A2. Therefore, the claim petition ought not have been rejected by the Tribunal by suspecting the location only for the reason that the Loco Pilot has not informed the nearby Station Master or Police regarding the dead body lying near Road-I track. Therefore, the Tribunal has erred in dismissing the claim



petition, and the order passed by the Tribunal is liable to be set aside.

7. The Hon'ble Apex Court in the case of ***DOLI RANI SAHA VS. UNION OF INDIA***¹ in paragraph No.13 has held as under:

"13. From the recapitulation of the various judicial pronouncements leading to the present appeal, it can be seen that the primary issue is whether the deceased was travelling on the train in question. In Rina Deva (supra), a two-Judge Bench of this Court considered the question of the party on which the burden of proof will lie in cases where the body of the deceased is found on railway premises. This Court held that the initial burden would be on the claimant, which could be discharged by filing an affidavit of the relevant facts. Once the claimant did so, the burden would then shift to the Railways. Significantly, it also held that the mere absence of a ticket would not negate the claim that the deceased was a bona fide passenger. The relevant extract from the ruling of the Court is reproduced below:

*"29. We thus hold that mere presence of a body on the railway premises will not be conclusive to hold that the injured or deceased was a bona fide passenger for which claim for compensation could be maintained. **However, mere absence of ticket with such injured or deceased will not negative the claim that he was a bona fide passenger. Initial burden will be on the claimant which can be discharged by filing an affidavit of the relevant facts and burden will then shift on the Railways** and the issue can be decided on the facts shown or the attending circumstances. This will have to be dealt with from case to case on the basis of facts found. The legal position in this regard will stand explained accordingly."*

¹ (2024) 9 SCC 656



8. The judgment of this Court in the case of **MAHABOOB SAB & ANOTHER VS. UNION OF INDIA**² in paragraphs No.12 & 17 has held as under:

"12. Per contra, Railways are claiming that it is not an untoward incident, but it is self-inflicted injury as contemplated under Section 124(a) Proviso (b). In view of these rival contentions, it would be necessary to examine the contentions raised by claimants before Tribunal in claim petition and evidence tendered by claimants, which is to the following effect: That the petitioners No.1 and 2 are the father and mother of the deceased Shahnawaz hereinafter called the deceased. The deceased was travelling Train No.1014 as a bona fide passenger. The deceased fell off from the train at Yelahanka Railway station, due to the huge jerk in the train. The deceased had suffered multiple injuries. The deceased was taken to Victoria Hospital for treatment and admitted as indoor patient. The duty doctors attended the deceased and offered all possible treatment to save the life of deceased. But the deceased succumbed to the injuries on 06.09.2003.

17. The fact that Railways Act is a beneficial piece of legislation cannot be lost sight of by this Court and it should receive a liberal and wider interpretation and purposeful construction of an enactment is one, which gives effect of legislative intent. Particularly when such beneficial legislation is called in question, it should receive a liberal interpretation and applying a strained interpretation would defeat the legislative purpose for which enactment is brought about."

9. In the case of **UNION OF INDIA VS. RINA DEVA**³, the Hon'ble Apex Court has held as under:

"Re: (ii) Application of Principle of Strict Liability - Concept of Self Inflicted Injury

16.1. From the judgments cited at the Bar we do not see any conflict on the applicability of the principle of strict liability. Sections 124 and Section 124A provide that compensation is payable whether or not there has been wrongful act, neglect or fault on the part of the railway administration in the case of an

²2010 SCC OnLine Kar 5098

³ AIR 2018 SC 2362



accident or in the case of an 'untoward incident'. Only exceptions are those provided under proviso to Section 124A. In Prabhakaran Vijaya Kumar (AIR 2009 SC (Supp) 383) (supra) it was held that Section 124A lays down strict liability or no fault liability in case of railway accidents. Where principle of strict liability applies, proof of negligence is not required. This principle has been reiterated in Jameela (AIR 2010 SC 3705) (supra).

16.2. Coming to the proviso to Section 124A to the effect that no compensation is payable if passenger dies or suffers injury due to the situations mentioned therein, there is no difficulty as regards suicide or attempted suicide in which case no compensation may be payable. Conflict of opinions in High Courts has arisen on understanding the expression 'self inflicted injury' in the proviso. In some decisions it has been held that injury or death because of negligence of the victim was at par with self inflicted injury. We may refer to the decisions of High Courts of Kerala in Joseph PT (AIR 2014 SC Ker 12) (supra), Bombay in Pushpa (supra) and Delhi in Shayam Narayan (supra) on this point.

16.3. In Joseph PT (AIR 2014 Ker 12) (supra), the victim received injuries in the course of entering a train which started moving. Question was whether his claim that he had suffered injuries in an 'untoward incident' as defined under Section 123(c) could be upheld or whether he was covered by proviso to Section 124A clause (b). The High Court held that while in the case of suicide or attempt to commit suicide, intentional act is essential. Since the concept of 'self inflicted injury' is distinct from an attempted suicide, such intention is not required and even without such intention if a person acts negligently, injuries suffered in such an accident will amount to 'self inflicted injury'. Relevant observations are:

"Therefore, the two limbs of the Proviso should be construed to have two different objectives to be achieved. We can understand the meaning of the term "self-inflicted injury" not only from the sources provided by the dictionaries, but also from the context in which it is used in the statute. The term "self-inflicted injury" used in the statute can be deduced as one which a person suffers on account of one's own action, which is something more than a rash or negligent act. But it shall not be an intentional act of attempted suicide. While there may be cases where there is intention to inflict oneself with injury amounting to self-inflicted injury, which falls short of an attempt to commit suicide, there can also be cases where, irrespective of intention, a person may act with total recklessness, in



that, he may throw all norms of caution to the wind and regardless to his age, circumstances, etc. act to his detriment. Facts of this case show that the appellant attempted to board a moving train from the off side unmindful of his age and fully aware of the positional disadvantageous and dangers of boarding a train from a level lower than the footboard of the train. It is common knowledge that the footboard and handrails at the doors of the compartment are designed to suit the convenience of the passengers for boarding from and alighting to the platform. And at the same time, when a person is trying to board the train from the non-platform side, he will be standing on the heap of rubbles kept beneath the track and that too in a lower level. Further more, he will have to stretch himself to catch the handrails and struggle to climb up through the footboard hanging beneath the bogie. The probability of danger is increased in arithmetic progression when the train is moving. Visualising all these things in mind, it can only be held that the act of the appellant was the height of carelessness, imprudence and foolhardiness. It is indisputable that the purpose of Section 124A of the Act is to provide a speedy remedy to an injured passenger or to the dependants of a deceased passenger involved in an untoward incident. Section 124A of the Act provides for compensation to a passenger or his dependants who suffers injury or death, as the case may be, in an untoward incident even where the untoward incident is not the consequence of any wrongful act, neglect or default on the part of Railway Administration. to this extent, it can be said to be a no-fault liability. Even though the provisions relating to payment of compensation in the Act can be said to be a piece a beneficial legislation, it cannot be stretched too much to reward a person who acts callously, unwisely or imprudently. There is no provision of law brought to our notice permitting the passengers to entrain from the non-platform side of the railway track. However, the counsel for the respondent did not show any provision of law prohibiting the same. The question whether an act by which a passenger sustains injury while boarding a train through the off side, is a selfinflicted injury or not depends on the facts of each case. Merely because a person suffered injury in the process of getting into the train through the off side, it may not be sufficient to term it as a selfinflicted injury, unless the facts and circumstances show that his act was totally imprudent, irrational, callous and unmindful of the consequences. All the facts and circumstances established in this case



would show that the act of the appellant was with full knowledge of the imminent possibility of endangering his life or limb and therefore, it squarely comes within the term "self-inflicted injury" defined in Section 124A Proviso (b) of the Act."

16.4. In *Pushpa (supra)* a hawker died in the course of boarding a train. It was held that he was not entitled to compensation as it was a case of 'self inflicted injury'. The relevant observations are:

"Such an attempt by a hawker has been viewed by the trial Court as something amounting to criminal negligence on his part and also an effort to inflict injuries to himself. The trial Court reasoned that if the deceased had to sell his goods by boarding a train, he should have ensured to do so only when it was quite safe for him to get on to the train or otherwise he could have avoided catching the train and waited for another train to come. It also hinted that there was absolutely no compulsion or hurry for the deceased in the present case to make an attempt to somehow or the other board the train while it was gathering speed."

16.5. In *Shyam Narayan (2017 AAC 1833 (Del.)(supra)*, same view was taken which is as follows:

"6(ii) I cannot agree with the arguments urged on behalf of the appellants/applicants in the facts of the present case because there is a difference between an untoward incident and an act of criminal negligence. Whereas negligence will not disentitle grant of compensation under the Railways Act, however, once the negligence becomes a criminal negligence and self-inflicted injury then compensation cannot be granted. This is specifically provided in the first proviso to Section 124-A of the Railways Act which provides that compensation will not be payable in case the death takes place on account of suicide or attempted suicide, self inflicted injury, bona fide passenger's own criminal act or an act committed by the deceased in the state of intoxication or insanity."

16.6. We are unable to uphold the above view as the concept of 'self inflicted injury' would require intention to inflict such injury and not mere negligence of any particular degree. Doing so would amount to invoking the principle of contributory negligence which cannot be done in the case of liability based on 'no fault theory'. We may in this connection refer to judgment of this Court in *United India Insurance Co. Ltd. v.*



Sunil Kumar 2017 (13) SCALE 652 : (AIR 2017 SC 5710) laying down that plea of negligence of the victim cannot be allowed in claim based on 'no fault theory' under Section 163A of the Motor Vehicles Act, 1988. Accordingly, we hold that death or injury in the course of boarding or de-boarding a train will be an 'untoward incident' entitling a victim to the compensation and will not fall under the proviso to Section 124A merely on the plea of negligence of the victim as a contributing factor."

10. As per Section 124A of the Railways Act, 1989, the compensation is to be payable on the principle of strict liability. Therefore, the claimants have proved their claim as discussed above and are entitled for compensation from the respondent-railway authorities. Therefore, the order passed by the Railway Claims Tribunal is liable to be set aside.

11. The Hon'ble Supreme Court in the case of ***Kamukayi and Others Vs. Union of India and Others***⁴, wherein at paragraph No.23 it is held as under:

"23. Accordingly and as per above discussion we allow this appeal and set aside the impugned judgment dated 26.03.2021 passed by the High Court and also the Claims Tribunal dated 29.06.2017. Consequently, claim application is allowed. The appellants are held entitled for compensation to the tune of Rs.4,00,000/-

⁴ (2023) 6 SCR 329



along with interest @ 7% p.a. from the date of filing the claim application till its realisation. It is made clear that after applying the rate of interest, if the final figure is less than Rs.8,00,000/-, then appellants shall be entitled to Rs.8,00,000/- . The amount of compensation be satisfied by the respondents within a period of eight weeks. No order as to costs."

12. The Hon'ble Supreme Court in the case of **KAMUKAYI AND OTHERS vs. UNION OF INDIA AND OTHERS⁵** has observed at paragraph No.22, which reads as follows:

"22. The said judgment was further explained by this Court in Radha Yadav⁶, relevant para 11 is reproduced as thus:

"11. The issue raised in the matter does not really require any elaboration as in our view, the judgment of this Court in Rina Devi⁷ is very clear. What this Court has laid down is that the amount of compensation payable on the date of accident with reasonable rate of interest shall first be calculated. If the amount so calculated is less than the amount prescribed as on the date of the award, the claimant would be entitled to higher of these two amounts. Therefore, if the liability had arisen before the amendment was brought in, the basic figure would be as per the Schedule as was in existence before the amendment and on such basic figure reasonable rate of interest would be calculated. If there be any difference between the amount so calculated

⁵ (2023) 19 SCC 116

⁶ Union of India V. Radha Yadav, (2019) 3 SCC 410

⁷ Union of India V. Rina Devi, (2019) 3 SCC 572



and the amount prescribed in the Schedule as on the date of the award, the higher of two figures would be the measure of compensation. For instance, in case of a death in an accident which occurred before amendment, the basic figure would be Rs.4,00,000. If, after applying reasonable rate of interest, the final figure were to be less than Rs.8,00,000, which was brought in by way of amendment, the claimant would be entitled to Rs.8,00,000. If, however, the amount of original compensation with rate of interest were to exceed the sum of Rs.8,00,000 the compensation would be in terms of figure in excess of Rs.8,00,000. The idea is to afford the benefit of the amendment, to the extent possible. Thus, according to us, the matter is crystal clear. The issue does not need any further clarification or elaboration."

13. Therefore, as per this order, if the compensation amount awarded with interest exceeds a sum of Rs.8,00,000/-, then the compensation would be in terms of figure excess of Rs.8,00,000/-. Therefore, in the present case also, the accident occurred is before 01.01.2017. Hence, by granting award of Rs.4,00,000/- with interest at the rate of 8% p.a., from the date of petition till realization, if it exceeds Rs.8,00,000/-, then the said exceeded amount shall be given to the appellants/claimants. If the final figure comes less than



Rs.8,00,000/-, then the appellants/claimants are entitled to Rs.8,00,000/-.

13. Accordingly, I proceed to pass the following

ORDER

- (i) The appeal is ***allowed***.
- (ii) The impugned judgment dated 18.01.2019 passed in claim application No.O.A II U 091/2016 by the Railway Claims Tribunal, Bangalore Bench, Bangalore, is set aside.
- (iii) Consequently, the claim application of the claimants/appellants is allowed. The claimants are held entitled to a total compensation of `8,00,000/- along with interest at the rate of 8% p.a., from the date of petition till the date of realization. The claimants being wife and mother of the deceased, respectively, the entire compensation shall be released in their favour in the ratio of 60:40, respectively;
- (vi) The amount of compensation be satisfied by the respondent Railway authorities, within a period of



eight weeks from the date of receipt of certified copy of this order;

- (vii) Registry is directed to transmit a copy of this judgment to the Railway Claims Tribunal, Bangalore Bench, forthwith;
- (viii) Draw award accordingly.
- (ix) No order as to costs.

SD/-
(HANCHATE SANJEEVKUMAR)
JUDGE

BKM
List No.: 1 SI No.: 59